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AIM: Write an article and case study on the topics given below — (a) what is a Copyright and rights related to it; (b) what are the types of work protected by copyright; (c) what is Authorship and Ownership of Copyright; and (d) what is the duration of Copyright.

1. Introduction: The Nature of Copyright

Copyright is a form of intellectual property that protects original works of authorship as soon as they are fixed in a tangible medium of expression. Unlike a trademark, which protects a badge of origin, or a patent, which rewards the disclosure of a new invention, copyright protects the creative expression itself — the particular way in which an idea is expressed in words, sounds, images or film. The protection arises automatically upon creation; registration is not a prerequisite for the subsistence of the right, though it has evidential advantages.

In India, copyright is governed by the Copyright Act, 1957, as amended most significantly by the Copyright (Amendment) Act, 2012. The Act gives the owner of copyright a bundle of exclusive economic rights — to reproduce, distribute, communicate, and adapt the work — and separately confers on the author a set of moral rights that survive even an assignment of the economic rights. The philosophical justification for copyright is dual: it rewards the labour and creativity of the author, and it incentivises the production and dissemination of knowledge and culture by promising a period of exclusivity during which the creator can recoup the investment made in producing the work.

Copyright differs from other intellectual property rights in several important respects. It subsists automatically without any formality; registration with the Registrar of Copyrights is optional and carries no constitutive effect. It protects expression, not ideas — the idea-expression dichotomy is fundamental, meaning that copyright in a novel does not prevent another author from writing a story on the same theme, only from copying the particular sentences, characters and narrative structure of the original. The duration of copyright is long — generally the author's lifetime plus sixty years — reflecting the view that creative works, unlike patented inventions, need not be surrendered to the public domain quickly.

1.1 Rights Related to Copyright

The Copyright Act confers two categories of rights: economic rights, which can be assigned or licensed and generate revenue, and moral rights, which are personal to the author and cannot be waived by contract. In addition, the 2012 Amendment extended significant protections to performers, whose live performances were previously vulnerable to unauthorised exploitation.

Right	What It Permits / Prohibits		Typical Scenario
Reproduction right	Making copies of the work in any material form, including storing it digitally.		Photocopying a textbook; caching a webpage.
Communication to the public	Broadcasting, streaming or otherwise making the work available to the public.		Uploading a film to a streaming platform.
Adaptation right	Translating, arranging, dramatising, converting or otherwise transforming the work.		Translating a novel; making a film from a novel.
Distribution / issuance right	Putting copies into circulation by sale or other transfer of ownership.		Selling physical copies of a software package.
Moral rights (author only)	Right to claim authorship and to object to derogatory treatment of the work; inalienable and perpetual.		An author objecting to a mutilated translation of their novel.
Performer's rights	The right of performers to reproduce, broadcast and communicate their live performance.		A musician objecting to unauthorised recording of a live concert.

Table 1 — Rights Comprised in Copyright

Case Study — Eastern Book Company v. D.B. Modak, Supreme Court of India (2008).

The appellants had published the official judgments of the Supreme Court in print and in a CD-ROM database, to which they had added head-notes, editorial notes, and a "copy editor's input" — paragraph numbering and cross-referencing. The respondents copied the raw judgments but also reproduced the editorial inputs. The Supreme Court held that copyright subsists only in the result of an author's intellectual effort — a minimal but genuine degree of creativity is required; the "sweat of the brow" alone is not enough. The judgments themselves, being government works, attracted no copyright, but the head-notes and substantial editorial additions did, because they reflected the exercise of skill and judgment. The case establishes the creativity threshold that all Indian copyright claimants must clear, and illustrates why the economic rights in a compilation can exist even when the underlying material is in the public domain.

2. Types of Work Protected by Copyright

Section 13 of the Copyright Act, 1957 specifies the categories of works in which copyright subsists. The list is exhaustive in the sense that a work must fall into one of the enumerated categories to attract statutory protection, but within each category the definition is deliberately broad. Originality — in the Indian sense of being the product of the author's own skill and effort, with a minimal degree of creativity — is an additional prerequisite for all literary, dramatic, musical and artistic works; the originality requirement does not apply to cinematograph films and sound recordings as such, though the underlying components of those works will independently attract protection if they are original.

Category of Work	What It Covers	Illustration
Literary works	Original written works — novels, poems, computer programs, tables, compilations.	"Harry Potter" novels; source code of a software application.
Dramatic works	Works of action with or without words intended for performance on stage or screen.	A stage play or a screenplay.
Musical works	Music, including any accompanying words; excludes sound recordings.	A composed symphony or a film score.
Artistic works	Paintings, sculptures, drawings, engravings, photographs, works of architecture, and works of artistic craftsmanship.	An oil painting, a bronze statue, an architectural blueprint.
Cinematograph films	Any work of visual recording on any medium, with or without sound.	A Bollywood feature film; a documentary.
Sound recordings	Recording of sounds from which the sounds may be reproduced, regardless of medium.	A music album; a podcast episode stored on a server.

Table 2 — Categories of Works Protected Under the Copyright Act, 1957

2.1 The Idea-Expression Dichotomy

A fundamental principle that cuts across all categories is that copyright protects expression, not ideas. An idea, concept, principle, discovery or mere style is not protectable; only the particular form in which it is expressed receives protection. Two novelists may write stories about a detective in Victorian London, but neither can prevent the other from doing so — what copyright prevents is copying the actual sentences, the distinctive plot architecture and the developed characters of the original. This principle prevents copyright from chilling the free exchange of ideas while still rewarding those who give ideas their creative form.

Computer programs receive literary work protection under an amendment made in 1994. The program's source code and object code are both protected. However, the algorithm underlying the program — being an idea or method of operation — is not protectable by copyright, though it may be the subject of a patent if it meets the requirements of patentability.

Case Study — R.G. Anand v. M/s Delux Films, Supreme Court of India (1978).

The appellant, a playwright, claimed that the defendant's film "New Delhi" was a reproduction of his play "Hum Hindustani". Both works dealt with provincialism and inter-state prejudice in India. The Supreme Court held that an idea, theme or subject matter is not protectable — copyright subsists only in the form, manner and arrangement in which the idea is expressed. Since the film treated the theme differently in setting, characters, and plot, there was no infringement. The case remains the leading Indian authority on the idea-expression dichotomy. For students, it illustrates why copyright protection is both narrower (ideas remain free) and broader (any original expression is automatically protected) than is commonly assumed.

3. Authorship and Ownership of Copyright

The concepts of authorship and ownership are not synonymous under the Copyright Act, and confusing them is a frequent source of error. Authorship determines who created the work and carries both the moral rights and the initial attribution of the copyright; ownership determines who holds the economic rights and is entitled to exploit the work commercially. In most cases the author is also the first owner, but the Act identifies several important exceptions.

3.1 Who Is the Author?

Section 2(d) of the Copyright Act defines “author” differently for each category of work.

Work Category	Author Under the Act	Note
Literary, dramatic, musical or artistic work	The person who creates it (i.e., the human author).	The person who gives the work its original form is the author, not the person who merely dictates or sketches an outline.
Computer-generated work	The person who causes the work to be created.	Where a program autonomously produces output, the programmer or operator who causes the creation is treated as author.
Photograph	The person who takes the photograph.	Not the subject or the owner of the camera, but the person who frames and takes the shot.
Cinematograph film	The producer.	The person who takes the initiative and responsibility for making the work.
Sound recording	The producer.	The person who takes the initiative and responsibility for first fixing the sounds.

Table 3 — Authorship by Category of Work

3.2 Who Is the First Owner?

Section 17 of the Copyright Act states that the author of a work shall be the first owner of the copyright. However, the proviso to Section 17 carves out two critical exceptions that transfer first ownership away from the human creator.

First, where a literary, dramatic, musical or artistic work or a computer program is made by the author in the course of his employment under a contract of service or apprenticeship, the employer shall, in the absence of any agreement to the contrary, be the first owner of the copyright. An employee who writes code during working hours for their employer's product cannot, in the absence of a contrary agreement, claim ownership of that copyright. Second, the Government is the first owner of copyright in any work made or first published by or under the direction or control of the Government.

Importantly, the 2012 Amendment strengthened the position of authors who assign their copyright by providing that in any assignment of copyright in an underlying work to a film producer or sound recording producer, the author retains the right to an equal share of the royalties payable for any utilisation of the

work beyond the production itself — most significantly, for the broadcasting of the film. This provision addresses the historical imbalance between the bargaining power of authors and large producers.

3.3 Assignment and Licensing

The owner of copyright may assign the copyright, wholly or partially, generally or subject to limitations, and either for the whole term or part thereof. An assignment must be in writing signed by the assignor or their authorised agent. The assignee steps into the shoes of the owner in respect of the rights assigned. A licence, by contrast, is a permission to do one or more of the acts comprised in the copyright, without transferring ownership; an exclusive licence approaches assignment in economic effect but does not vest ownership in the licensee. A compulsory licence may be granted by the Copyright Board (now the Intellectual Property Appellate Board) where a copyright owner has refused to allow communication of the work to the public on reasonable terms.

Case Study — IPRS v. Eastern India Motion Pictures, Supreme Court of India (1977).

The Indian Performing Right Society (IPRS) claimed that its members — composers and lyricists — retained performing rights in their musical and literary works even after assigning them to film producers for incorporation in cinematograph films. The Supreme Court held that once a lyricist or composer assigns their work to a film producer for inclusion in a film, the producer becomes the owner of the copyright in the film, and the performing rights society cannot collect separate royalties for public performance of the film. This ruling exposed a significant asymmetry between the rights of authors and the commercial interests of producers, and was a direct catalyst for the 2012 Amendment's royalty-sharing provisions. For students, the case illustrates how the assignment of copyright and the scope of the assignee's rights can drastically curtail what the original author can do with their own creation.

4. Duration of Copyright

One of the defining characteristics of copyright, when compared with other intellectual property rights, is the length of its term. Sections 22 to 29 of the Copyright Act, 1957 specify the term of copyright for each category of work. The general rule — life of the author plus sixty years — is both longer and more variable than the fixed terms applicable to patents or trademarks, because it ties the end of the copyright term to an event (the author's death) that is uncertain in advance.

The sixty-year post-mortem period is calculated from the beginning of the calendar year next following the relevant event (death of the author, or first publication, as applicable). India adopted this term when it joined the Berne Convention framework; the Convention requires a minimum term of the author's life plus fifty years, and India has always provided a longer term.

Category	Duration Under the Copyright Act, 1957	Remarks
Literary, dramatic, musical or artistic work (identified author)	Lifetime of the author plus sixty years from the year following death.	The sixty-year period runs from 1 January of the year after the author dies.
Anonymous or pseudonymous work	Sixty years from the year of first publication.	If the identity of the author becomes known, the lifetime-plus-sixty rule applies instead.
Posthumous work	Sixty years from the year of first publication after the author's death.	Applies to works first published after the author has died.
Cinematograph film	Sixty years from the year of publication.	Publication means making the film available to the public.
Sound recording	Sixty years from the year of publication.	The sixty-year period starts from 1 January of the year after first publication.
Government / public undertaking work	Sixty years from the year of first publication.	The Government is the first owner of copyright in works made under its direction.
Broadcasts (television / radio)	Twenty-five years from the year of broadcast.	A separate and shorter term reflects the ephemeral nature of broadcasting.

Table 4 — Duration of Copyright by Category of Work

4.1 Effect of Expiry

When copyright expires, the work enters the public domain. Any person may then freely reproduce, distribute, adapt or perform the work without seeking permission or paying a fee. This is a deliberate policy choice: the law provides the creator with a long period of exclusivity sufficient to reward the creative effort, but ultimately returns the work to the cultural commons so that subsequent creators can freely build upon it. The public domain is not a vacuum — it is a positive space of freely available material that enriches culture and knowledge.

It is important to note that expiry of copyright in a work does not necessarily mean that every manifestation of that work is free. A new, original edition of a public-domain literary work — incorporating editorial notes, introductions or corrections that themselves reflect creativity — can attract fresh copyright in those additions, even though the underlying text is unprotected. Similarly, a sound recording of a public-domain musical composition will carry its own copyright in the recording, separate from any copyright in the composition itself.

Case Study — Amar Nath Sehgal v. Union of India, Delhi High Court (2005).

The sculptor Amar Nath Sehgal had created a large mural for Vigyan Bhavan, New Delhi, on a government commission. Decades later, the Government removed and stored the mural in a warehouse, where it was allowed to deteriorate. Sehgal sued, invoking Section 57 of the Copyright Act — the provision that confers on every author the special right to claim authorship and to restrain or claim damages for any distortion, mutilation or modification of the work that is prejudicial to honour or reputation. The Delhi High Court held that moral rights survive even assignment of the economic rights, and that the Government's treatment of the mural amounted to a distortion prejudicial to the sculptor's honour. The Court awarded damages and ordered the mural to be returned to the sculptor for restoration. For students the case is essential: it demonstrates that copyright's moral rights dimension operates independently of duration and ownership, and that it applies with full force even against a powerful defendant.

7. Viva Questions and Answers

1. Q: What is copyright, and what threshold of originality does Indian law require?

A: Copyright is a statutory right protecting original works of authorship fixed in a tangible medium. Indian law requires a minimal but genuine degree of creativity — not merely the application of labour or skill — as established by the Supreme Court in *Eastern Book Company v. D.B. Modak* (2008).

2. Q: Name the six categories of work protected by the Copyright Act, 1957.

A: Literary works, dramatic works, musical works, artistic works, cinematograph films, and sound recordings.

3. Q: How does copyright differ from a patent or a trademark?

A: Copyright protects original creative expression automatically, without registration, for a term tied to the author's life. A patent protects a new, non-obvious invention for a fixed twenty years. A trademark protects a sign distinguishing goods or services and is renewable indefinitely.

4. Q: Who is the “author” of a cinematograph film under the Act?

A: The producer — the person who takes the initiative and responsibility for making the film.

5. Q: When does copyright ownership differ from authorship?

A: Where a work is created in the course of employment under a contract of service, the employer is the first owner of copyright even though the employee is the author. Government works also vest in the Government as first owner.

6. Q: What is the duration of copyright in a literary work with a known author?

A: The lifetime of the author plus sixty years, calculated from 1 January of the year following the author's death, under Section 22 of the Copyright Act.

7. Q: What happens to a work once its copyright expires?

A: It enters the public domain and may be freely reproduced, distributed or adapted by anyone without permission or payment.

8. Q: What are moral rights, and can they be assigned?

A: Moral rights are the author's right to claim authorship of a work and to restrain derogatory treatment of it. They are inalienable — they cannot be waived or assigned even when the economic rights are transferred.

9. Q: What is the idea-expression dichotomy?

A: The principle that copyright protects the particular expression of an idea but not the idea itself. Two creators may independently address the same theme without either infringing the other's copyright, as long as neither copies the other's actual expression.

10. Q: How did the 2012 Amendment protect authors from one-sided assignments to film producers?

A: It provided that, notwithstanding any assignment, the author of an underlying work retains the right to receive an equal share of royalties for any utilisation of the work beyond the production itself —

particularly for broadcasting — ensuring authors cannot be contractually stripped of royalty entitlements.

8. Learning Outcomes

- Defined copyright as an automatic right protecting original creative expression, and distinguished it from patents, trademarks and designs by reference to subject matter, duration and registration requirements.
- Identified the six categories of works protected under Section 13 of the Copyright Act, 1957, and applied the originality threshold established by the Supreme Court in *Eastern Book Company v. D.B. Modak*.
- Explained the bundle of economic rights and the inalienable moral rights that together constitute copyright, and identified the additional rights conferred on performers by the 2012 Amendment.
- Distinguished authorship from first ownership, and identified the employment and government exceptions under Section 17 that transfer first ownership away from the individual creator.
- Interpreted the duration provisions of Sections 22 to 29, including the life-plus-sixty rule, the special terms for anonymous, posthumous, film, sound recording and government works, and the shorter term for broadcasts.